

II.

As I understand it, the Court's position is that it is unnecessary to decide in what circumstances public actions should be permitted, for it is possible to identify situations in which taxpayers who contest the constitutionality of federal expenditures assert "personal" rights and interests, identical in principle to those asserted by Hohfeldian plaintiffs. This position, if supportable, would of course avoid many of the difficulties of this case; indeed, if the Court is correct, its extended exploration of the subtleties of Article III is entirely unnecessary. But, for reasons that follow, I believe that the Court's position is untenable.

The Court's analysis consists principally of the observation that the requirements of standing are met if a taxpayer has the "requisite personal stake in the outcome" of his suit. *Ante*, at 101. This does not, of course, resolve the standing problem; it merely restates it. The Court implements this standard with the declaration that taxpayers will be "deemed" to have the necessary personal interest if their suits satisfy two criteria: *first*, the challenged expenditure must form part of a federal spending program, and not merely be "incidental" to a regulatory program; and *second*, the constitutional provision under which the plaintiff claims must be a "specific limitation" upon Congress' spending powers. The difficulties with these criteria are many and severe, but it is enough for the moment to emphasize that they are not in any sense a measurement of any plaintiff's interest in the outcome of any suit. As even a cursory examination of

least for immediate judicial resolution. Compare *Ashwander v. Tennessee Valley Authority*, 297 U. S. 288, 345-348 (concurring opinion); H. Wechsler, *Principles, Politics, and Fundamental Law* 9-15 (1961); and Bickel, *Foreword: The Passive Virtues*, *The Supreme Court*, 1960 Term, 75 Harv. L. Rev. 40, 45-47 (1961).